

Equivalent Citations

citation codes .

Om Prakash v. State Of Haryana .

Supreme Court Of India (Jul 7, 2011)

CASE NO.

Criminal Appeal No. 421 of 2007, decided on July 7, 2011

DISPOSITION**IN PART****JUDGES**

- Dr B.S Chauhan
- Swatanter Kumar, JJ.

ATTORNEY

- Suresh Chandra Tripathy, Advocate, for the Appellant;
- Rajeev Gaur Naseem and Kamal Mohan Gupta, Advocates, for the Respondent.

SUMMARY**Om Prakash v. State of Haryana****Factual and Procedural Background**

Om Prakash (“the appellant”) and Jai Prakash were committed to stand trial before the Additional Sessions Judge, Jagadhri, on 30 September 1994. Jai Prakash faced charges under Sections 363, 366 and 376(2)(g) of the Indian Penal Code (IPC); the appellant was charged under Sections 368 and 376(2)(g).

The prosecution alleged that on 2 January 1994 a 14- year- old girl was abducted at knifepoint by Jai Prakash, taken roughly 15-20 km to Gulab Nagar, and raped twice in a room provided by the appellant, who allegedly guarded the door while the assault occurred.

On 30 January 1996 the trial court convicted both accused. The Punjab & Haryana High Court dismissed their appeals on 9 August 2005. The present appeal, filed only by Om Prakash, challenges that dismissal before the Supreme Court of India.

Legal Issues Presented

1. Whether the evidence proved a common intention between the appellant and Jai Prakash sufficient to sustain a conviction for gang *rape* under Section 376(2)(g) IPC.
2. Whether the ingredients of Section 368 IPC—wrongful concealment or confinement of a kidnapped person with knowledge of such kidnapping—were established against the appellant.
3. Whether delay in lodging the First Information Report (FIR) or alleged inconsistencies in testimony warranted the appellant's acquittal.

Arguments of the Parties

Appellant's Arguments

- The FIR was lodged after an inordinate delay, undermining the prosecution case.
- He was falsely implicated and played no part in the kidnapping or *rape*.
- The facts, even if accepted, did not satisfy the statutory requirements of Section 376(2)(g) IPC, entitling him to the benefit of doubt.

State's Position

The opinion does not contain a detailed account of the State's specific arguments.

Table of Precedents Cited

Precedent	Rule or Principle Cited For	Application by the Court
Ashok Kumar v. State of Haryana (2003) 2 SCC 143	Gang- <i>rape</i> liability under Section 376(2)(g) requires proof of common intention; mere presence is insufficient.	Supported the finding that the appellant's limited conduct did not prove shared intent to <i>rape</i> .
Bhupinder Sharma v. State of Himachal Pradesh (2003) 8 SCC 551	Joint liability for gang <i>rape</i> flows from common intention; individual commission by each accused need not be proved.	Cited to explain the doctrine but distinguished because common intention was absent here.
Pardeep Kumar v. Union Administration (2006) 10 SCC 608	Elements of common intention: concerted action, prior plan or meeting of minds.	Used as a factual analogue; Court held the appellant's conduct showed no prior concert.
Priya Patel v. State of M.P. (2006) 6 SCC 263	Clarifies evidentiary standards for establishing common	Referenced through Pardeep Kumar for the

	intention in sexual offences.	applicable standard.
Saroj Kumari v. State of U.P. (1973) 3 SCC 669	Constituents of Section 368 IPC: knowledge of kidnapping and wrongful confinement.	Relied upon to uphold the appellant's conviction under Section 368 IPC.

Court's Reasoning and Analysis

- The prosecutrix did not allege that the appellant participated in the *rape* or knew of her kidnapping; she only stated he provided a cot and guarded the door.
- Precedents establish that Section 376(2) (g) requires proof of common intention, inferred from prior concert or participation, which the evidence lacked.
- The Court accepted the prosecution's explanation for FIR delay, noting the prosecutrix's trauma and reluctance to speak immediately.
- Minor inconsistencies in witness testimony were deemed natural and not fatal.
- Because prior concert to commit *rape* was unproven, the appellant could not be held liable for gang *rape* under Section 376(2)(g).
- However, his act of guarding the door while knowing the prosecutrix was being wrongfully confined satisfied Section 368 IPC, consistent with Saroj Kumari.

Holding and Implications

The appeal is partially allowed. The conviction under Section 376(2)(g) IPC is set aside, and the appellant is acquitted of that charge. His conviction under Section 368 IPC is affirmed, with a sentence of five years' rigorous imprisonment and a fine of ₹5,000, and four months' imprisonment in default.

Implications: The judgment reinforces that liability for gang *rape* under Section 376(2)(g) requires clear proof of prior concert and common intention; passive facilitation is insufficient. No new legal doctrine is created, but the decision clarifies the evidentiary threshold for future prosecutions under the provision.

JUDGMENT

The Judgment of the Court was delivered by

Swatanter Kumar, J. — The two accused, Om Prakash (hereinafter referred to as “the appellant”) and Jai Prakash were committed to the Court of Additional Sessions Judge at Jagadhri vide order dated 30-9-1994 to face trial, in the case of Jai Prakash under **Sections 363, 366 and 376(2)(g) of the Penal Code, 1860** (in short “IPC”) and in the case of the appellant under Sections 368 and 376(2)(g) IPC. Both these accused pleaded not guilty to the charge and faced trial.

2. The prosecution examined as many as nine witnesses to bring home the guilt of the accused in response to the questions posed by the Court disclosing incriminating evidence against the accused under **Section 313 of the Code of Criminal Procedure, 1973** (in short “the Code”). The appellant denied the incident and stated that he had never known either Jai Prakash or the prosecutrix. Jai Prakash took the stand that he used to visit the house of one Bhagwan Dass and there was enmity between Bhagwan Dass and the father of the prosecutrix. Fufa of the prosecutrix, Jeet Ram, was posted at Yamuna Nagar Police Station and because of personal animosity, he has been falsely implicated.

3. The trial court vide a detailed judgment dated 30-1-1996 recorded a finding that all the essential ingredients constituting the offence for which the accused were charged were fully proved and subsequently convicted both the accused of the said offences. After hearing them on the quantum of sentence and noticing the antecedents and the family background of the accused, the trial court took a lenient view and sentenced Jai Prakash to undergo rigorous imprisonment for five years under Section 363 IPC and to pay a fine of Rs 250 and in default of payment of fine, to undergo further rigorous imprisonment for four months. The court also convicted him under Section 376(2)(g) IPC with a sentence of rigorous imprisonment for ten years and a fine of Rs 500 and in default of payment of fine to undergo further rigorous imprisonment for six months.

4. However, the court awarded sentence of five years' rigorous imprisonment to the appellant under Section 368 IPC and a fine of Rs 250 and in default of payment of fine to further undergo rigorous imprisonment for four months and/ or for the offence under Section 376(2)(g) IPC awarded him RI for seven years and a fine of Rs 500 and to further undergo, in the event of default of payment of fine, four months' RI.

5. Dissatisfied with the judgment of the trial court, Jai Prakash and the appellant preferred separate appeals before the High Court of Punjab and Haryana at Chandigarh. The same were dismissed and the judgment of conviction and order of sentence as awarded by the trial court, was upheld by the High Court vide its well-reasoned judgment dated 9-8-2005. Against this judgment of the High Court, the appellant alone has filed the present appeal.

6. The learned counsel appearing for the appellant, while challenging the judgment of the High Court before this Court, has contended that there was an inordinate delay in lodging the FIR, the appellant had been falsely implicated in the case and he had no role to play whatsoever either in the alleged kidnapping of the prosecutrix or in raping her. According to him, even if the entire evidence is read in its correct perspective, the appellant would be entitled to the benefit of doubt and consequent acquittal. It is also contended that the basic ingredients of Section 376(2)(g) IPC are not satisfied in the present case.

7. In order to examine the merit of these contentions, it will be important for us to notice the case of the prosecution in brief.

8. Complainant Ram Pal (PW 6) is a resident of House No. 115 in Vijay Colony and is a labourer in Paper Mill, Yamuna Nagar. He has five daughters and one son aged about three years. On the evening of 2-1-1994, one of his daughters, the prosecutrix, aged about 14

years, went out of the house to throw rubbish but she did not return. The complainant searched for her but she could not be traced. On 3-1-1994, his son-in-law, Bali Ram (PW 7) came from Village Topra and told him that Jai Prakash had taken the prosecutrix on his cycle the previous night and then dropped her to Bali Ram's house that morning. After receiving this information he brought his daughter from Village Topra; she did not tell anything to the complainant at that time but after 2-3 days, she narrated the entire incident.

9. The prosecutrix informed that she had been taken away by Jai Prakash, accused at knifepoint and he raped her in the house of the appellant in his presence. Ram Pal (PW 6), father of the prosecutrix lodged the report with the police on 6-1-1994. Thereafter, as already noticed, Jai Prakash and the appellant were tried by the court of competent jurisdiction and convicted. In terms of the statement of the prosecutrix, Jai Prakash, accused threatened to kill her if she did not accompany him. She was taken on his cycle to Gulab Nagar after crossing the railway line. He took her to the house of the appellant and talked secretly with him to arrange space and a cot. Both the accused slept in the same room in which she was raped.

10. It has also come in evidence that Jai Prakash had intercourse with the prosecutrix twice after threatening her with a knife and the appellant did not come to her rescue despite her cries for help. The appellant slept in that very room near the door to guard against entry of any other person as well as to prevent her from going out. Jai Prakash threatened to kill the prosecutrix with his knife if she raised alarm and at about 3-4 a.m, Jai Prakash, accused took her away to Village Topra on cycle and left her at the house of her brother-in-law, namely, Bali Ram.

11. Dr V.K Sharma (PW 8) had stated before the Court that he had examined Jai Prakash on 17-1-1994 and in his opinion, he was capable of performing intercourse and this fact is proved by his report (Ext. PG). Dr Neeru Ohri (PW 2) had medically examined the prosecutrix on 6-1-1994 and had opined that the girl had been subjected to coitus.

12. Besides medical experts and the investigating officer, there are three material witnesses, the prosecutrix (PW 5), Ram Pal (PW 6) and Bali Ram (PW 7). All these witnesses have stated what they were told by the prosecutrix. Thus, the basic foundation for either acquittal or holding the accused guilty primarily depends upon the statement of these witnesses. According to the prosecutrix (PW 5), the appellant met Jai Prakash after he had taken her away at a knifepoint to Gulab Nagar and there they had talked for some time and then the appellant had provided a cot and space to Jai Prakash. It is not the statement of the prosecutrix that she either overheard or was even certain as to what both of them discussed within that short duration. She has clearly stated that the appellant did not directly or indirectly participate in the act of *rape* .

13. We are not concerned with the offence committed by Jai Prakash in the present appeal. Statement of PW 6 is primarily based upon what was narrated to him by the prosecutrix so is the statement of PW 7. They have no personal knowledge about the event and role, if any, played by the appellant. The entire material evidence would relate to the medical evidence of Jai Prakash for performing the sexual intercourse and that of the prosecutrix

that she was subjected to sexual intercourse. It is in no way even suggestive of the role, if any, which has been played by the appellant. There can hardly be any doubt that Jai Prakash raped the prosecutrix.

14. As far as the appellant is concerned, according to the prosecutrix, he did not come to her help when she cried out to him and thus the appellant wrongly ensured her confinement in the room where Jai Prakash subjected her to the assault of *rape*. To put in a nutshell the prosecutrix was threatened at knifepoint and taken away as the pillion rider on a cycle across a distance of 15 to 20 km, raped and then dropped her to brother-in-law Bali Ram's house the next morning. In this entire episode no role is attributed to the appellant.

15. Even according to Bali Ram (PW 7), Jai Prakash alone came to drop the prosecutrix at his place. In the words of the prosecutrix, "I asked Om Prakash, accused to some (sic) to my help but he did not pay any heed. Om Prakash, accused has slept in that very room, so that he may guard the entry of any other person and so may guard my going out...". This is the precise role, in the words of the prosecutrix, which is attributable to the appellant. Even if we take the statement of the prosecutrix as gospel truth, nothing more can be attributed to the appellant.

16. Of course, Gandhi Prasad (DW 1), the defence witness stated that he had been a tenant in Moti Ram's house in Gulab Nagar since five years. His room was situated towards the eastern side of the house and Moti Ram and his family were residing in the opposite room. Moti Ram had since died. The appellant was stated to be the nephew of Moti Ram but neither the owner of the house nor a tenant. The appellant was married, he denied that any girl ever came to those premises. The statement of DW 1 does not really advance the case of the defence but the effect (sic fact) of the matter remains that the appellant was stated to be neither the owner nor tenant of the premises in question.

17. Be that as it may, DW 1's statement cannot be given greater weightage than the statement of the prosecutrix. It is not even the statement of DW 1 that he was there on that particular day. He has only stated that in January 1994, he was in his room which obviously does not inspire confidence as it cannot be inferred that he was staying in the room the entire month, day in and day out. His statement was that no girl came to those premises on 2-1-1994. He does not even say that for the entire day and night of 2-1-1994, he was present in the house. For the above reasons and even otherwise, DW 1 appears to be an interested witness being a friend of the appellant as he is staying in the same premises and would be interested in protecting the appellant.

18. There is some delay in lodging the FIR but that delay has been well explained. A young girl who has undergone the trauma of *rape* is likely to be reluctant in describing those events to anybody including her family members. The moment she told her parents, the report was lodged with the police without any delay. Once a reasonable explanation is rendered by the prosecution then mere delay in lodging of a first information report would not necessarily prove fatal to the case of the prosecution.

19. The learned counsel appearing for the appellant has hardly been able to bring to our

notice any material contradictions in the statements of the prosecution witnesses. Every small discrepancy or minor contradiction which may erupt in the statements of a witness because of lapse of time, keeping in view the educational and other background of the witness, cannot be treated as fatal to the case of the prosecution. The court must examine the statement in its entirety, correct perspective and in light of the attendant circumstances brought on record by the prosecution.

20. The High Court in its judgment has not discussed whether the ingredients of Section 376(2)(g) IPC are satisfied in the present case. It will be useful to refer the provisions of Section 376(2) IPC at this stage which read as under:

“376. (1) ***

(2) Whoever—

(a) being a police officer commits *rape* —

(i) within the limits of the police station to which he is appointed; or

(ii) in the premises of any station house whether or not situated in the police station to which he is appointed; or

(iii) on a woman in his custody or in the custody of a police officer subordinate to him; or

(b) being a public servant, takes advantage of his official position and commits *rape* on a woman in his custody as such public servant or in the custody of a public servant subordinate to him; or

(c) being on the management or on the staff of a jail, remand home or other place of custody established by or under any law for the time being in force or of a women's or children's institution takes advantage of his official position and commits *rape* on any inmate of such jail, remand home, place or institution; or

(d) being on the management or on the staff of a hospital, takes advantage of his official position and commits *rape* on a woman in that hospital; or

(e) commits *rape* on a woman knowing her to be pregnant; or

(f) commits *rape* on a woman when she is under twelve years of age; or

(g) commits *gang rape* ,

shall be punished with rigorous imprisonment for a term which shall not be less than ten years but which may be for life and shall also be liable to fine:

Provided that the court may, for adequate and special reasons to be mentioned in the

judgment, impose a sentence of imprisonment of either description for a term of less than ten years.

Explanation 1.—Where a woman is raped by one or more in a *group* of persons acting in furtherance of their common intention, each of the persons shall be deemed to have committed gang *rape* within the meaning of this sub-section.

Explanation 2.—‘Women's or children's institution’ means an institution, whether called an orphanage or a home for neglected women or children or a widows' home or by any other name, which is established and maintained for the reception and care of women or children.

Explanation 3.—‘Hospital’ means the precincts of the hospital and includes the precincts of any institution for the reception and treatment of persons during convalescence or of persons requiring medical attention or rehabilitation.”

21. A plain reading of Section 376(2)(g) with Explanation 1 thereto shows that where a woman is raped by one or more of a *group* of persons acting in furtherance of their common intention, each of the persons shall be deemed to have committed gang *rape* within the meaning of Section 376(2)(g) IPC. In other words, the act of gang *rape* has to be in furtherance of their common intention before the deeming fiction of law can be enforced against the accused.

22. This Court in [Ashok Kumar v. State of Haryana](#) (2003) 2 SCC 143 had occasion to dwell on Explanation 1 to Section 376(2)(g) IPC while examining whether the appellant Ashok Kumar could be convicted under the same because at the crucial time, he happened to be in the house of the co-accused Anil Kumar in whose case the judgment of conviction under Section 376(2)(g) had attained finality. The Court observed that the prosecution must adduce evidence to show that more than one accused has acted in concert and in such an event, if *rape* had been committed by even one of the accused all will be guilty irrespective of the fact that she has not been raped by all of them. Therefore, it may not be necessary for the prosecution to adduce evidence of a completed act of *rape* by each one of the accused. The provision embodies a principle of joint liability and the essence of that liability is in existence of common intention. That common intention presupposes prior concert as there must be meeting of minds, which may be determined from the conduct of the offenders which is revealed during the course of action.

23. After examining the circumstances relied upon by the prosecution to indicate concert, the Court in Ashok Kumar (2003) 2 SCC 143 concluded that mere presence of the appellant could not establish that he had shared a common intention with the co-accused to *rape* the prosecutrix.

24. A similar view was taken in [Bhupinder Sharma v. State of H.P](#) (2003) 8 SCC 551 in which the Court held as under:

“14. In cases of gang *rape* the proof of completed act of *rape* by each accused on the victim is not required. The statutory intention in introducing Explanation 1 in relation to Section 376(2)(g) appears to have been done with a view to effectively deal with the growing menace of gang *rape* . In such circumstances, it is not necessary that the prosecution should adduce clinching proof of a completed act of *rape* by each one of the accused on the victim or on each one of the victims where there are more than one in order to find the accused guilty of gang *rape* and convict them under Section 376 IPC.”

25. Another Bench of this Court in Pardeep Kumar v. Union Admn. [\(2006\) 10 SCC 608](#) after noticing the judgment of this Court in Ashok Kumar (2003) 2 SCC 143, Bhupinder Sharma (2003) 8 SCC 551 and Priya Patel v. State of M.P [\(2006\) 6 SCC 263](#) while elaborating the ingredients of the offence under Section 376(2)(g) IPC stated the law as follows: (Pardeep Kumar case [\(2006\) 10 SCC 608](#))

“10. To bring the offence of *rape* within the purview of Section 376(2)(g) IPC, read with Explanation 1 to this section, it is necessary for the prosecution to prove:

(i) that more than one person had acted in concert with the common intention to commit *rape* on the victim;

(ii) that more than one accused had acted in concert in commission of crime of *rape* with prearranged plan, prior meeting of mind and with element of participation in action. Common intention would be action in concert in prearranged plan or a plan formed suddenly at the time of commission of offence which is reflected by the element of participation in action or by the proof of the fact of inaction when the action would be necessary. The prosecution would be required to prove pre-meeting of minds of the accused persons prior to commission of offence of *rape* by substantial evidence or by circumstantial evidence; and

(iii) that in furtherance of such common intention one or more persons of the *group* actually committed offence of *rape* on victim or victims. Prosecution is not required to prove actual commission of *rape* by each and every accused forming the *group* .

11. On proof of common intention of the *group* of persons which would be of more than one, to commit the offence of *rape* , actual act of *rape* by even one individual forming the *group* , would fasten the guilt on other members of the *group* , although he or they have not committed *rape* on the victim or victims.

12. It is settled law that the common intention or the intention of the individual concerned in furtherance of the common intention could be proved either from direct evidence or by inference from the acts or attending circumstances of the case and

conduct of the parties. Direct proof of common intention is seldom available and, therefore, such intention can only be inferred from the circumstances appearing from the proved facts of the case and the proved circumstances..”

26. It must be noticed that in Pardeep Kumar [\(2006\) 10 SCC 608](#), the Court stated the above principles but acquitted the accused. According to the statement of the prosecutrix in that case, the accused had reached the premises after commission of the offence, though he had consumed liquor with the persons who had actually raped the prosecutrix. The Court came to the conclusion that there was no common intention or prior concert to commit the offence of gang *rape* as mere presence would not be sufficient to find the appellant guilty by taking aid of Explanation 1.

27. The present case is slightly similar to Pardeep Kumar [\(2006\) 10 SCC 608](#), of course, it is not in any way identical on facts. In the case in hand, the prosecutrix had not been gang-raped, as alleged by the prosecution, and she had travelled all the way i.e nearly 15-20 km on a cycle. Thus, the intention to kidnap and commit *rape* or subject her to sexual assault was the intention of Jai Prakash alone. There was no prior plan or meeting of minds between the appellant and Jai Prakash to either kidnap or to *rape* the prosecutrix.

28. As per the statement of the prosecutrix, the appellant had provided a room to both Jai Prakash and the prosecutrix and remained there to see that she does not go out or that nobody comes in. The crucial question in this entire sequence of events is whether Jai Prakash told the appellant that he had kidnapped the prosecutrix or that the prosecutrix was known to him and had accompanied him of her own accord. There is no direct evidence in this regard. A collective reading of the evidence would show that the role of the appellant is limited to wrongfully confining the prosecutrix and not rendering help when asked for.

29. However, it would have been an entirely different situation if the prosecutrix had stated in her statement that the appellant had been told by Jai Prakash about her alleged kidnapping and his intention to *rape* her, during the short conversation that they are stated to have had before entering the room. It is clear from her statement that she does not even claim that she overheard the conversation. Thus, it may not be possible for the Court to draw an adverse inference against the appellant when the prosecution has not been able to lead any definite evidence in that regard.

30. In Saroj Kumari v. State of U.P [\(1973\) 3 SCC 669](#) this Court while explaining the constituents of an offence under Section 368 IPC clearly held that when the person in question has been kidnapped, the accused knew that the said person had been kidnapped and the accused having such knowledge, wrongfully conceals or confines the person concerned then the ingredients of Section 368 IPC are said to be satisfied.

31. The prosecution evidence and particularly the statement of the prosecutrix shows that the act of kidnapping with the intention to *rape* and actual commission of *rape* of the prosecutrix were completed by Jai Prakash himself. The appellant had rendered the help of providing a room but there is nothing on the record, including the statement of the prosecutrix, to show that she overheard Jai Prakash telling the appellant that he had

kidnapped her and/or that the appellant had any knowledge of the fact that she had been kidnapped. The possibility of the appellant being informed by Jai Prakash that she had come of her own will and had travelled a long distance of 15-20 km without protest does not appear to be unreasonable. As noticed, according to the prosecutrix, she was under threat but the prosecution was expected to produce evidence to show that the factum of kidnapping as well as intent to commit a *rape* was known to the appellant either directly or at least by circumstantial evidence.

32. As per the evidence of the prosecution, the room where the prosecutrix was raped belonged to one Shri Moti Ram, the uncle of the appellant who had died. Except the statement of DW 1, no other defence had been led by the appellant to prove that he is innocent or has been falsely implicated. Though DW 1 had made a vague statement that on the date of occurrence, no girl had come to that room, that statement cannot be said to be truthful and it does not inspire confidence.

33. Even in the cases where the statement of prosecutrix is accepted as truthful, it is expected of the prosecution to show some basic evidence of common intention or concert prior to commission of the offence. In the present case, it is an undisputed fact that Jai Prakash alone at knifepoint had taken away the prosecutrix across a distance of more than 15 km and it is only after he reached Gulab Nagar that he met the appellant. Except providing a space and cot and helping the accused in wrongfully detaining the prosecutrix, no further act or common intention is attributable. There is no evidence that there was a common concert or common intention or meeting of minds prior to commission of the offence between the two accused.

34. For the reasons aforerecorded, we partially accept the present appeal. The judgment of the trial court convicting the accused under Section 376(2)(g) IPC is set aside and he is acquitted of the said charge. However, his conviction under Section 368 IPC and the sentence awarded by the High Court is maintained. Therefore, the accused shall undergo rigorous imprisonment for five years with a fine of Rs 5000, in default of payment of fine to undergo rigorous imprisonment for four months.

35.* The appeal is accordingly disposed of.